

Part VI. Accountability

No. 16

Appeals and Complaints

Code

Cite this instrument as No. 16, Appeals and Complaints.

29 September 2026

Summary

Three electors, not on council, decide complaints in writing. Council cannot overturn them.

An appeal to the same council that made the decision is not a check. A court can still stay a decision.

Part 1. Purpose

1.1 This instrument is the appeal body. Council does not hear appeals from its own decisions.

Part 2. Who sits

2.1 The body is three electors elected under constitution section 6.2, for three years. A member of the body who becomes a candidate for council must resign from the body within 2 days of being nominated. If they do not, the seat is vacant on day 3.

2.2 Quorum is two. A member of the body who is immediate family of a party, or who took part in the decision under appeal, must not sit. If two members are disqualified, any 10 electors may appoint a qualified elector in writing for that file only, within 14 days. If they do not, the file waits, and the records officer posts that fact on day 15.

2.3 The First Nation must pay each member of the body the posted stipend, which is set by elector vote and not by council. A council resolution that cuts the stipend during a term is void.

Part 3. Complaints

3.1 A member may complain in writing within 60 days of learning of the decision, and not later than 1 year after the decision. The complaint must state the date, the decision, the section, and what order is asked for.

3.2 The body must give the decision maker 14 days to respond in writing. The body must then decide within 30 days after the response period, even if no response is filed.

3.3 The body may dismiss a complaint that states no section and no fact, within 15 days, with reasons. That dismissal is not reviewed by council. A court may review it.

3.4 A decision of the body must be in writing, must cite the section, and must state the order. Orders may include: declare a resolution void, order repayment by a stated day, bar a person from a class of decisions for a stated period, suspend or restore a benefit, or remove a person from office or employment where another instrument in this set authorizes removal.

3.5 The body must post the decision within 3 days. It must not post another member's health information or the text of a false accusation.

3.6 The decision stands unless a court stays it. Council must not overturn it. A resolution that purports to overturn it is void, and each councillor who voted for it must not move a money resolution for 90 days.

Part 4. The body's own deadlines

4.1 If the body misses a deadline in this set, the records officer must post the miss on the next day. If three deadlines are missed in one year, any 10 electors may call a vote, on 21 days' notice, to remove the body and elect a new one. Removal takes effect when the new body is elected.

Part 5. Amendment

5.1 Council must not amend this appeals instrument by resolution. A resolution that tries is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 The electoral officer posts the full text at least 45 days before the vote. A vote on shorter notice is void. The officer posts the count within 3 days.

5.3 The change passes only if a majority of all electors vote yes. A majority of the ballots is not enough. Indian Act subsection 2(3)(a) uses that count for a power of the band. If the count is not met, the text does not change.

5.4 The text comes into force the day after the electors adopt it under this Part. It does not repeal a law already in force unless the electors also meet that law's own replacement rule.

5.5 The appeal body reviews the text every 4 years from that day and posts a written report within 60 days. The report does not change the text.